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KİŞİSEL VERİLERİ KORUMA KURUMU

DATA PROTECTION IN TURKEY

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DATA PROTECTION IN TURKEY

The Protection of Personal Data Law No. 6698 came into force after its publication in the Official Gazette No. 29677 on 7 April 2016. Turkish Data Protection Authority was established under the same Law and is located in Ankara.

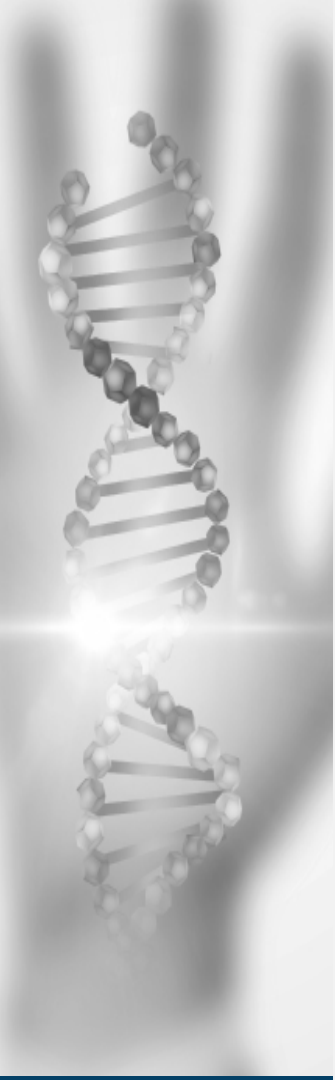
Personal Data Protection Authority, which is a public legal entity and possesses administrative and financial autonomy, has been established to carry out duties conferred on it under the Law No. 6698. The Authority is composed of the Personal Data Protection Board and the Presidency.

Personal Data Protection Board consists of nine members. Five members of the Board are elected by Grand National Assembly of Turkey, two members by the President of the Republic and two members by the Council of Ministers[1]. The selection and appointment process of the Board members was completed at the end of 2016 and the Board started its duty on January 12, 2017 after the members took the oath before the First Presidency Board of the Court of Cassation.

The mission of the Authority is to ensure the protection of personal data and develop awareness in this respect in the public eye in line with the fundamental rights related with privacy and freedom stated in the Constitution as well as to establish an environment to enhance the capability of competition of the public and private organisations in the data-driven world. Our vision is to be a globally recognized competent authority which is influential in the protection of personal data and raising the public awareness in this regard.

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1 According to Article 163 of the Decree Law no:703 (02/07/2018), the amendment of the paragraphe 2 of article 21 shall come into force. Five members of the Board are elected by Grand National Asembly of Turkey, four members by the President of the Republic.



PERSONAL DATA

What is Personal Data?

Personal Data is any information relating to an identified or identifiable natural person such as a name, an identification number, location data, an online identifier or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.

It can be said that basically two criteria are used to distinguish between personal data from non-personal data. Accordingly, to identify any data as a personal data, the data must be relevant to a person and this person can be identified or identifiable.

Special categories of personal data

Personal data relating to the race, ethnic origin, political opinion, philosophical belief, religion, religious sect or other belief, appearance, membership to associations, foundations or trade-unions, data concerning health, sexual life, criminal convictions and security measures, and the biometric and genetic data are deemed to be special categories of personal data.

Special categories of personal data, if obtained by others, can leave the data subject open to discrimination or unfair treatment. For this reason, sensitive personal data merit specific protection than other personal data.

Who is Data Subject?

Only data of the natural persons are protected under the Law. Therefore, the term “data subject” is used in the Law to refer to natural person whose personal data are being processed. As expressly stated in the definitions of the Law, the person to be protected is “natural person”.

If data of a legal entity identifies or makes identifiable any natural person, these data are protected under the Law as well. However, interest in question to be protected belongs to the natural person, not to the legal person, because the Law does not regulate the protection of data concerning legal persons.



DATA SUBJECT (Natural person concerned)



DATA CONTROLLER

Who is Data Controller?

Data controller is the natural or legal person who determines the purposes and means of processing personal data and is responsible for the establishment and management of the data filing system.

Legal persons are themselves “controllers” in processing of personal data, the responsibility specified in the relevant regulations shall belong to the legal persons themselves. There is no difference between public legal entity and private legal persons in this regard.

In other words, according to the Law data controller determines the purposes for which and the means by which personal data is processed. So, it is the person who decides ‘why’ and ‘how’ the personal data should be processed.

What is Processing of Personal Data ?

Processing of personal data is any operation performed on personal data, wholly or partially by automated means or non-automated means which provided that form part of a data filing system, such as collection, recording, storage, protection, alteration, adaptation, disclosure, transfer, retrieval, making available for collection, categorization, preventing the use thereof.



PROCESSING OF PERSONAL DATA

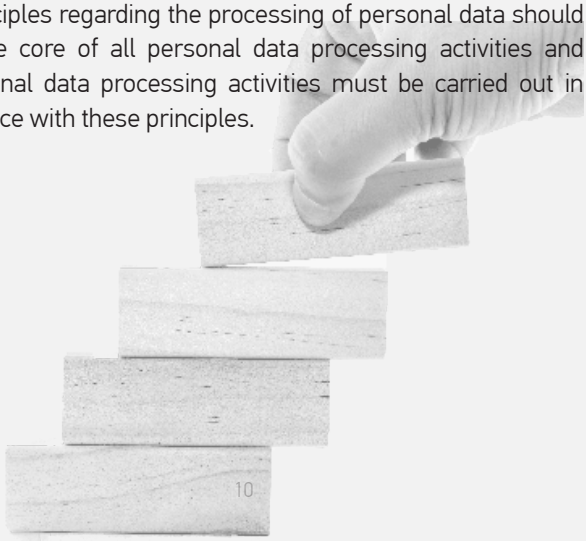
General Principles in Processing of Personal Data

The procedures and principles for the processing of personal data in the Law are regulated in accordance with the Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data No. 108 and the European Union Data Protection Directive 95/46/EC.

The following general principles set out in the Law shall be complied within the processing of personal data:

- Lawfulness and fairness
- Being accurate and kept up to date where necessary.
- Being processed for specified, explicit and legitimate purposes.
- Being relevant, limited and proportionate to the purposes for which they are processed.
- Being stored for the period laid down by relevant legislation or the period required for the purpose for which the personal data are processed.

The principles regarding the processing of personal data should be at the core of all personal data processing activities and all personal data processing activities must be carried out in accordance with these principles.



Conditions for Personal Data Processing

a) Conditions for Personal Data

Personal Data is any information relating to an identified or identifiable natural person.

Personal data shall not be processed without explicit consent of the data subject.

Personal data may be processed without seeking the explicit consent of the data subject only in cases where one of the following conditions is met:

- It is expressly provided for by the laws.
- It is necessary for the protection of life or physical integrity of the person himself/herself or of any other person, who is unable to explain his/her consent due to the physical disability or whose consent is not deemed legally valid.
- Processing of personal data of the parties of a contract is necessary, provided that it is directly related to the establishment or performance of the contract.
- It is necessary for compliance with a legal obligation to which the data controller is subject.
- Personal data have been made public by the data subject himself/herself.
- Data processing is necessary for the establishment, exercise or protection of any right.
- Processing of data is necessary for the legitimate interests pursued by the data controller, provided that this processing shall not violate the fundamental rights and freedoms of the data subject.



CONDITIONS

Conditions regarding processing of personal data are limited under the Law and cannot be extended. It is not necessary to obtain explicit consent in cases where data processing is based on the conditions which are referred to in the Law other than explicit consent. Obtaining explicit consent when there are other legal basis to process the data is misleading and deemed as a violation of rights by the data controller. In case of the withdrawal of explicit consent by a data subject, the continuation of processing data by a data controller which is based on the other legal basis is deemed as processing against the rule of the lawfulness and fairness.

Therefore, it is necessary to evaluate whether the purpose of the processing of personal data by the data controller is based on one of the processing conditions other than explicit consent. If this purpose is not based on at least one of the conditions which are referred in the Law other than explicit consent, it is necessary to receive explicit consent of the data subjects for data processing.

b) Conditions for Special Categories of Personal Data (Sensitive Personal Data)

Sensitive Personal Data, if obtained by others, can make the data subject vulnerable to discrimination or unfair treatment. For this reason, sensitive personal data need to be protected more strictly than the other personal data. Sensitive personal data can only be processed with the explicit consent the of data subject or with any of the conditions set out by the Law.

Sensitive data is explicitly defined in the Law. Personal data relating to the race, ethnic origin, political opinion, philosophical belief, religion, religious sect or other belief, appearance, membership to associations, foundations or trade-unions, data concerning health, sexual life, criminal convictions and security measures, and the biometric and genetic data are deemed to be sensitive data. These are limited by the Law, so it is not possible to extend them by comparison.

The Law also makes a distinction between sensitive personal data. Accordingly, the conditions of processing of personal data relating to health and sexual life have been regulated differently from other sensitive personal data.

Special categories of personal data may be processed only in cases where one of the following conditions is met:

- The explicit consent of the data subject.
- Personal data, except for data concerning health and sexual life may be processe without seeking explicit consent of the data subject, in the cases provided for by laws.
- Personal data concerning health and sexual life may only be processed, without seeking explicit consent of the data subject, by the persons subject to secrecy obligation or competent public institutions and organizations, for the purposes of protection of public health, operation of preventive medicine, medical diagnosis, treatment and nursing services, planning and management of health-care services as well as their financing.

Adequate measures determined by the Board shall be also taken while processing the special categories of personal data.



EXPLICIT CONSENT

Key Points on Explicit Consent

Explicit consent is defined as the consent that relates to a specified issue, declared by free will and based on information.

Under the Law, explicit consent means approving the processing of personal data upon the individual's own request or other party's request. The data subject shall actually express the decision on his/her legal value to the data controller with his/her explicit consent. The statement of explicit consent will also enable the data subject to determine the limits, scope and manner in which the data is allowed to be processed.

In this sense, explicit consent must include "positive declaration of intention" of the data subject who consents. Without prejudice to the regulations in the other legislation, it is not necessary to obtain explicit consent in writing. It is also possible to obtain explicit consent through electronic media and call centre etc. The controller shall be able to demonstrate that the data subject has consented to processing of his or her personal data.

Under the definition of explicit consent set out in the Article 3 of the Law, explicit consent has 3 elements which are as follows:

- Related to a specified issue.
- Based on information
- Declared by free will.

General explicit consent which is not restricted to a specified issue and the relevant transaction are accepted as "blanket consents" and are deemed legally invalid. For example; consent statements which do not indicate a specified issue or activity, such as "all kinds of commercial transactions, banking transactions and data processing activities", can be deemed blanket consents.

Giving explicit consent is a strictly binding right for the individual. Therefore, the data subject can withdraw his/her explicit consent. Since the data subject has the right to determine the future of his/her personal data, he can withdraw his/her consent at any time.

However, withdrawal of explicit consent will have forward-looking results; all transactions carried out on the basis of explicit consent must be stopped by the data controller at the time when it learns the withdrawal.



TRANSFER OF PERSONAL DATA

Transfer Of Personal Data

a) Transfer of Personal Data in Turkey

Article 8 of the Personal Data Protection Law defines that personal data which is obtained within the framework of the general principles specified in the Law can only be transferred in the conditions set out Article 5 and 6 of the Law to the third parties.

On the other hand, processing of personal data lawfully in Turkey does not mean that the data can be directly transferred to the third parties. Conditions set out Article 5 and 6 of the Law are also stipulated for the transfer of personal data.

Under Article 8 of the Law, transferring personal data in Turkey may take place in case one of the following conditions is met:

- Explicit consent of the data subject,
- It is expressly provided for by the laws.
- It is necessary for the protection of life or physical integrity of the person himself/herself or of any other person, who is unable to explain his/her consent due to the physical disability or whose consent is not deemed legally valid.
- Processing of personal data of the parties of a contract is necessary, provided that it is directly related to the establishment or performance of the contract.

•It is necessary for compliance with a legal obligation to which the data controller is subject.
•Personal data have been made public by the data subject himself/herself.
•Data processing is necessary for the establishment, exercise or protection of any right.
•Processing of data is necessary for the legitimate interests pursued by the data controller, provided that this processing shall not violate the fundamental rights and freedoms of the data subject.

**The Provisions of other laws relating to transfer of personal data are reserved.*

If transfer of sensitive personal data is to take place, one of the following conditions must be met:

•Explicit consent of the data subject
•Personal data, except for data concerning health and sexual life may be processed without seeking explicit consent of the data subject, in the cases provided for by laws.
•Personal data concerning health and sexual life may only be processed, without seeking explicit consent of the data subject, by the persons subject to secrecy obligation or competent public institutions and organizations, for the purposes of protection of public health, operation of preventive medicine, medical diagnosis, treatment and nursing services, planning and management of health-care services as well as their financing.

Personal data are only the information relating to the natural person. However “data controller” and “data processor” can be both natural person and legal person. Any natural or legal person who carries out a transaction on personal data is either a data controller or a data processor according to the purpose and method relating to the data processing. In this context, it is necessary to comply with the Article 8 of the Data Protection Law for all kinds of data transfer between these persons.

b) Transfer of Personal Data Abroad

Under Article 9 of the Law, a cross-border transfer may take place in cases where one of the following conditions is met:

•Explicit consent of the data subject.
•Personal data may be transferred abroad without explicit consent of data subject upon the existence of one of the conditions referred to in Article 5(2) and Article 6(3) of the Law and if in the country where personal data are to be transferred;

(a) Adequate protection is provided.
(b) Adequate protection is not provided, upon the existence of commitment for adequate protection in writing by the data controllers in Turkey and in the relevant foreign country and authorisation of the Board.

The Board determines and announces the countries with adequate protection. The Board shall decide whether there is adequate protection in the foreign country and whether such transfer is permitted under the sub-paragraph of Article 9(2) of the Law, by evaluating the followings and by receiving the opinions of relevant institutions and organizations, where necessary:

a) the international conventions to which Turkey is a party,
b) the state of reciprocity relating to data transfer between the requesting country and Turkey,
c) the nature of the data, the purpose and duration of processing regarding each concrete, individual case of data transfer,
ç) the relevant legislation and its implementation in the country to which the personal data are to be transferred,
d) the measures committed by the data controller in the country to which the personal data are to be transferred,

Without prejudice to the provisions of international agreements, in cases where interest of Turkey or the data subject will seriously get harmed, personal data may only be transferred abroad upon the authorisation to be given by the Board after receiving the opinions of relevant public institutions and organizations.

The Provisions of other laws relating to the transfer of personal data abroad are reserved.

It is necessary to comply with the Article 9 of the Data Protection Law for all kinds of data transfer between data controllers or between data controller and data processor.



RIGHTS OF THE DATA SUBJECT

Rights of the Data Subject

Data Subject has the right to;
- Make a request to the data controller
- Lodge a complaint with the Board

a) Right to Make a Request

Pursuant to Article 13 of the Law, data subjects can submit his/her request relating to the implementation of the Law to the data controller.

Natural persons whose personal data are processed have right to request to data controllers within the scope of their rights specified in Article 11 of the Law. This right consists of the following:

- to learn whether his/her personal data are processed or not,
- to demand for information as to if his/her personal data have been processed,
- to learn the purpose of processing of his/her data and whether these personal
- data are used in compliance with this purpose,
- to know the third parties to whom his/her personal data are transferred in country or abroad,
- to request the rectification of the incomplete or inaccurate data, if any,

- to request erasure or destruction of his/her personal data, under the conditions referred to in Article 7,
- to request reporting of the operations carried out pursuant to sub-paragraphs (d) and (e) to third parties to whom his/her personal data have been transferred,
- to object to the occurrence of a result against the person himself/herself by analysing the data processed solely through automated systems,
- to claim compensation for the damage arising from the unlawful processing of his/her personal data.

Data subjects shall make a request to data controllers within the scope of their rights specified in Article 11 of the Law, in writing or by registered electronic mail (KEP) address, secured electronic signature, mobile signature or by the e-mail address which has been previously entered into the data controllers' system or through a software or application designed for purposes of this request.

The data controller is obliged to take necessary organizational and technical measures to conclude the requests to be made by data subject within the scope of the Communiqué, effectively and complying with norms of lawfulness and fairness.

Data controller shall act on the requests or refuses them together with justified grounds. Data controller shall communicate its response to the data subject in writing or by electronic means.

Data controllers shall conclude the demands in the request within the shortest time by taking into account the nature of the demand and at the latest within thirty days and free of charge. However, if process requires additional costs, fees may be charged in the tariff specified in Article 7 of the Communiqué. If the request is caused due to the fault of the data controller, the fee is refunded to data subject.

b) Right to Lodge a Complaint

If the request pursuant to Article 13 of the Law is refused, the response of the controller is found insufficient or the request is not answered by the controller within 30 days, the data subject may lodge a complaint with the Board within thirty days as of he/she learns about the response of the data controller, or within sixty days as of the request date, in any case.. Data subject shall not contact to the Board before exhausting the remedy of the request to the data controller.

Article 15 of the Law provides for the procedures and principles of the examination to be made by the Board. Accordingly, the Board shall make the necessary examination in the matters falling within its task upon complaint or ex officio, where it learns about the alleged infringement. This examination shall comply with alleged infringement upon complaint or ex officio.
Complaints not meeting conditions laid down in Article 6 of the Law No. 3071 of 1/11/1984 on the Use of Right to Petition shall not be examined.

As the request is mandatory and the complaint is optional, a data subject whose request has been refused implicitly or explicitly may both lodge a complaint with the Board and resort directly to the judicial or administrative jurisdiction.

Article 15 of the Law determines the procedures and principles of the examination to be made by the Board.

The Board shall finalize the examination upon complaint and give an answer to data subjects. Upon complaint, The Board examines the demand and gives an answer to the data subjects. In case the request isn't responded in sixty days from the date of complaint the demand shall be deemed refused.

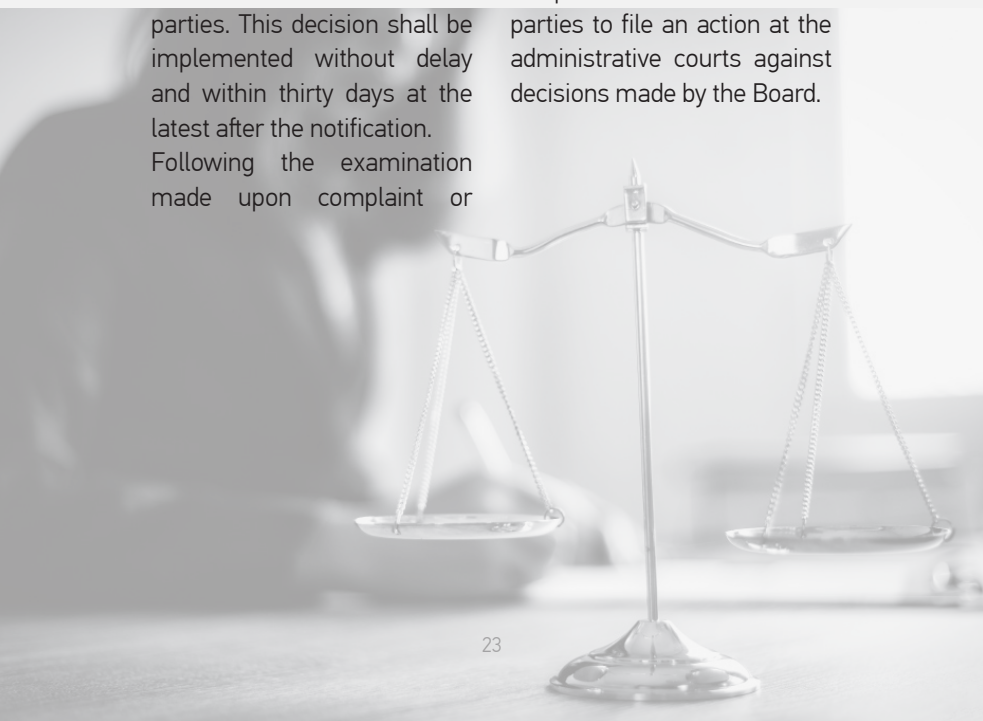
Except for the information and documents having the status of state secret, the controller shall be send the information and documents demanded by the Board related to the subject of examination within fifteen days, and shall enable, where necessary, on-the-spot examination.

Following the examination made upon complaint or ex officio, in cases where it is understood that an infringement exists, the Board shall decide that the identified infringements shall be remedied by the relevant controller and notify this decision to relevant parties. This decision shall be implemented without delay and within thirty days at the latest after the notification.

Following the examination made upon complaint or ex officio, in cases where it is determined that the infringement is widespread, the Board shall adopt and publish a resolution in this regard. Before adopting the resolution, the Board may also refer to the opinions of relevant institutions and organizations, if needed.

The Board may decide that processing of data or its transfer abroad should be stopped if such operation may lead to damages that are difficult or impossible to compensate for and if it is clearly unlawful.

It is possible for the interested parties to file an action at the administrative courts against decisions made by the Board.





OBLIGATIONS OF THE DATA CONTROLLER

Obligations of the Data Controller

a) Obligation to Inform

The law gives data subject the right to be informed about by whom, for what purposes and for which legal reasons/basis their data are to be processed, for what purposes and to whom the data may be transferred, and these issues are addressed under the obligation to inform of the controller.

Under Article 10 of the Law, at the time when personal data are obtained, the controller or the person authorised by it is obliged to inform the data subjects about the following:

- the identity of the controller and of his representative, if any,
- the purpose of processing of personal data,
- to whom and for which purposes the processed personal data may be
- the methods and legal basis of collection of personal data,
- other rights referred to in Article 11.

The controller is obliged to inform to the data subject when the data processing adheres to the explicit consent of the data subject or processing is carried out under another condition of the Law. That is, the data subject should be informed in every situation where his/her personal data are processed.

The following procedures and principles must be followed at the time of the fulfilment of the obligation to inform by the data controller or the person authorized by it by using physical or electronic media such as oral or written statement, voice recording, call centre.

The obligation to inform shall be fulfilled in any cases where the data processing adheres to the explicit consent of the data subject or processing is carried out under another condition.

In case the purpose of personal data processing changes, the obligation to inform shall be fulfilled for new purpose prior to start of data processing. Fulfilment of the obligation to inform does not depend on the request of data subject.



b) Erasure, Destruction or Anonymisation of Personal Data

Despite being processed under the provisions of the Law, personal data shall be erased, destructed or anonymised by the controller, ex officio or upon the request of the data subject, in the event that all of the conditions for processing laid down in pursuant to Article 5 and Article 6 of the Law no longer exist.

Obligations of the controller are to erase, destruct or anonymise personal data in cases where the reason of processing no longer exists. It is not necessary for the data subject to request for this. However, in the event of negligence of the controller, data subject has the right to request that personal data shall be erased, destructed .

The controller, who prepared personal data storage and disposal policy, shall erase, destruct or anonymise personal

data in the first periodic disposal process following the date on which the obligation to erase, destruct or anonymise personal data occurs within the framework of the By-Law on Erasure, Destruction or Anonymisation of Personal Data.

Erasure of personal data is the process of rendering personal data inaccessible and non-reusable for the users concerned, by no means.

Destruction is the process of rendering personal data inaccessible, irretrievable or non-reusable by anyone, by no means.

Anonymisation is the process of rendering personal data impossible to link with an identified or identifiable natural person, even though matching them with other data.

The Data controller is obliged to take any type of technical and organizational measures related to erasure, destruction or anonymisation of personal data.

Data controllers who are obliged to register with Data Controllers' Registry system, pursuant to Article 16 of the Law, shall issue personal data storage and disposal policy in accordance with personal data processing inventory.

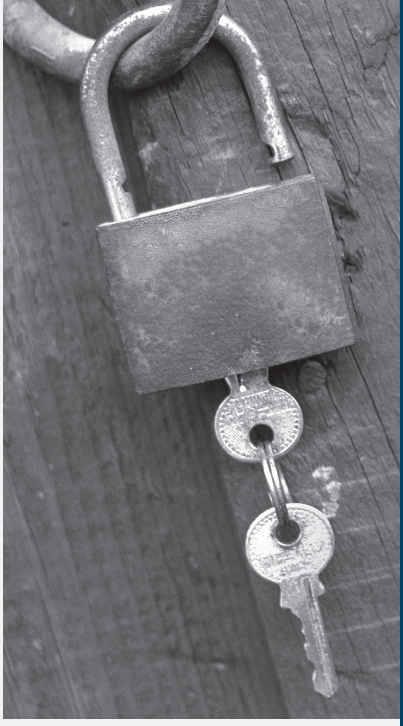
Data controller, who has issued data storage and disposal policy pursuant to the By Law on Erasure, Destruction or Anonymisation of Personal Data, shall erase, destruct or anonymise the personal data in the first periodic disposal process following the date for obligation of erasure, destruction or anonymisation of personal data arises.

Data controller is obliged to describe the methods used for the erasure, destruction and anonymisation operations of personal data in the relevant policies and procedures.

All operations relating to erasure, destruction and anonymisation of personal data shall be recorded and those records shall be stored for minimum three years excluding other legal obligations.
Unless otherwise decided by the Board, the data controller may choose one of the appropriate methods for periodic erasure, destruction or anonymisation of personal data ex officio. Upon request of data subject, data controller may choose appropriate method with justified grounds.

The Board issued By-Law on Erasure, Destruction or Anonymisation of Personal Data to determine principles and procedures regarding erasure, destruction and anonymisation of personal data processed wholly or partially by automated means or non-automated means which provided that form part of a data filing system .

In addition, a Guide on Erasure, Destruction or Anonymisation of Personal Data ("Guidelines") has been prepared by the Board to draw attention to various topics in order to clarify the application and how to create good practice examples based on the Regulation.



c) Data Security Requirements

According to the Article 12 on data security of the Law, the controller is obliged to take all necessary technical and organizational measures to provide an appropriate level of security for the purposes of;

- preventing unlawful processing of personal data,
- preventing unlawful access to personal data,
- ensuring protection of personal data.

The Board has power to take regulatory action in order to determine security requirements. Additional measures may be taken according to the nature of the sector-specific processed data by taking into account the minimum criteria determined by the Board.

In case the processing of personal data is carried out by another natural person or legal person on behalf of the data controller, the controller shall jointly be responsible with these persons for taking the necessary measures. Therefore, data processors are also obliged to take measures to ensure data security.

Accordingly, for example, if the records of the data controller's company are held by an accounting company (data processor), the controller shall jointly be responsible with the accounting company for taking the measures regarding the processing of the data.

The controller is also obliged to carry out the necessary audits, or have them made, in /its own institution or organization, in order to ensure the implementation of the provisions of the Law. The controller can conduct this audit by itself or have them conducted through a third party.

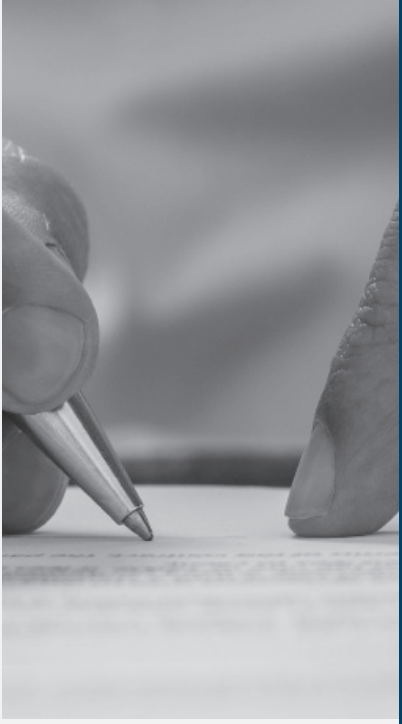
The data controllers and the data processors shall not disclose the personal data that they have obtained to anyone contrary to the provisions of this Law and they shall not use such data for purposes other than that for which the personal data have been processed. The controllers and processors shall remain responsible for this obligation even after the end of their term of office.

In case the processed data are obtained by others by unlawful means, the data controller shall communicate the breach to the data subject and notify it to the Board within the shortest time. Where necessary, the Board may announce such breach at its official website or through other methods it deems appropriate.

The appropriate measures to be taken regarding data security shall comply with the structure, activities and risks of each data controller. For this reason, a single model of data security cannot be envisaged. In determining the appropriate measures, The nature of the data controller's task and the personal data to be protected are also important as well as the size and balance sheet of the company.

Adequate measures determined by the Board shall be also taken while processing the special categories of personal data.

In this context, a Personal Data Security Guide has been prepared by the Personal Data Protection Authority in order to clarify the technical and organisational measures in practice to be taken by the controller and to form good practice examples during the processing of personal data.



d) Obligation to Register to Data Controllers' Registry

Pursuant to Article 16 of the Law Natural or legal persons who process personal data shall register with the Data Controllers' Registry prior to the start of data processing.

The procedures and principles related to the Data Controllers' Registry were determined through By-Law on the Data Controllers' Registry.

i. What is Data Controllers' Registry
Data Controllers' Registry (VERBİS) is an information system that is accessible on the Internet and established and managed by the Presidency under supervision of the Board, that data controllers will use for the registration with the Registry and the other operations related to the Registry. The aim of the system is to announce who data controllers are and to ensure exercise the right of personal data protection more effectively.

ii. Exemptions from Registration Obligation
All data controllers are obliged to register with the Data Controller's Registry System (VERBİS) prior to the processing of data. However, Article 16 regarding the obligations of registration with the VERBİS shall not be applied in the cases set forth in the second paragraph of Article 28.

The Law authorizes the Board to provide derogation from obligation to register with the Data Controllers' Registry by taking into consideration objective criteria set by the Board such as the nature and quantity of data processed, the purpose of processing of personal data, the field of activity where personal data are processed the fact that the processing data is laid down in the Laws, group of persons subject to the data or categories of data, the information of annual number of employees or annual financial balance sheet of the data controller.

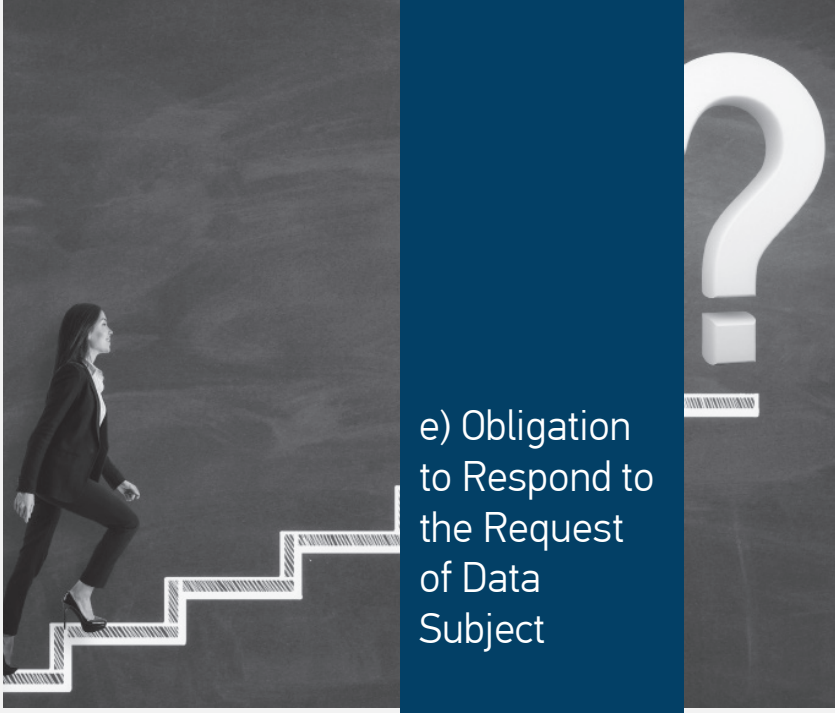
Aim of the Obligation to register with VERBİS is the establishment of a safer and transparent environment in terms of clarification of personal data processing and to act in compliance with the legislation for controllers.

iii. Information to be entered within the scope of the registration obligation

Data controllers shall provide the following information to register with Data Registry System (VERBIS):

• The information included in the application form determined by the Board relating to the identity and residential and business address of data controller, representative of data controller, if any and contact person,
• The purposes for which the personal data will be processed,
• The explanations relating to group(s) of persons subject to the data and the data categories of these persons,
• The Recipients or groups of recipients to whom personal data may be transferred,
• The personal data which are envisaged to be transferred abroad,
• Measures taken concerning the security of personal data as referred in Article 12 of the Law and in accordance with the criteria determined by the Board,
• Maximum storage period of personal data laid down by the legislation or for the purposes for which personal data are processed.

In case of any change in the Registry records, data controllers shall notify the Authority through VERBİS within seven days of the date of change



e) Obligation to Respond to the Request of Data Subject

Pursuant to Article 13 of the Law, the data subject shall make the requests relating to the implementation of this Law to the data controller in writing or by other means to be determined by the Board. The data controller shall conclude demands in the request within the shortest time by taking into account the nature of the demand and at the latest within thirty days and free of charge. However if the action requires an extra cost, fees in the tariff may be charged determined by the Board.

The fee set by the Board is included in the Communiqué on Procedures and Principles of the Application to Data Controllers. The data controller shall act on the request or refuse it with justified grounds and communicate its response to the data subject in writing or electronic means (such as registered e-mail address, a secure electronic signature, a mobile signature or an e-mail). In case the demand in the request is accepted, it shall be fulfilled by the data controller.

However if the action requires an extra cost, fees may be charged laid down in the tariff determined by the Board. If the request of the data subject is to be responded in writing, no fee will be charged up to ten pages. 1 Turkish Lira may be charged per page over ten pages.

If the request is made due to fault of the data controller, the fee is refunded to data subject.

In cases where the request is responded by means of recording medium like CD, flash memory, fee to be charged by data controller cannot exceed the cost of the recording medium.

If the request is refused, the response is found insufficient or the request is not responded within the specified time period, the data subject may lodge a complaint with the Board within thirty days as of he/she learns about the response of the data controller, or within sixty days as of the request date, in any case.



f) Obligation to Fulfil the Board Decisions



As a result of the examination made upon complaint, or ex-officio in cases where it is understood that an infringement exists, the Board shall decide that the identified infringements shall be remedied by the relevant data controller and notify this decision to the relevant parties. This decision shall be implemented without delay and within thirty days at the latest after the notification.

The Guidelines which we have published so far:

- Law on the Protection of Personal Data in 100 Questions
- Implementation Guideline on the Protection of Personal Data Law
- Personal Data Security Guidelines (Technical and Organisational Measures)
- Guideline on Erasure, Destruction or Anonymisation of Personal Data
- Frequently Asked Questions About the Protection of Personal Data Law
- Right to Request Protection of Personal Data as a Constitutional Right
- Data Controller and Data Processor
- Data Controllers' Registry
- Methods for Seeking Rights of Data Subject
- Rights and Obligations Under the Law
- Processing Conditions of Personal Data
- Key Principles Regarding to Processing of Personal Data
- Explicit Consent
- Basic Concepts in the Law No. 6698
- Terms in the Law No. 6698
- The Purpose and Scope of on the Protection of Personal Data the Law No. 6698
- International and National Regulations for the Protection of Personal Data
- The Need for the Protection of Personal Data Law
- Processing Conditions for Sensitive Personal Data
- Transfer of Personal Data Abroad
- Structure and Duties of Personal Data Protection Board


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